

25STCV28000 25STCV28000

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-08

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Case Number: 25STCV28000 Hearing Date: July 8, 2026 Dept: 224

PFC Holdings v. Nanula

FACTS OF THE CASE: Plaintiff alleges Defendant Richard D. Nanula executed and delivered a promissory note on or about August 16, 2018 in the original principal amount of \$1,722,750.65, and that the note required repayment of the principal plus interest at 5% per year. The complaint alleges that the note was later modified by a Forbearance Agreement effective June 17, 2022, which extended the maturity date to December 31, 2023 and stated the Note's unpaid principal as \$1,698,032.49. Plaintiff alleges Defendant failed to pay the outstanding balance at maturity despite demand, thereby breaching the loan documents. The complaint pleads that, as of August 31, 2025, Defendant owed \$2,017,149.36, consisting of \$1,698,032.49 in principal and \$319,116.87 in interest, plus further interest, attorney's fees, and costs. The JUD-100 requests a total amount of \$2,061,019.92 in accordance with said further interest, attorney's fees, and costs.

PROOF OF SERVICE/DEFAULT: Default previously entered on 11/14/2025

PRINCIPAL REQUESTED: \$ 1,698,032.49

INTEREST: \$ 343,485.36

ATTORNEY'S FEES: \$ 18,870.32

COSTS: \$631.75

TOTAL: \$ 2,061,019.92

ANALYSIS:

Entry of default is not void as the plaintiff did not file an amended complaint after default was entered, and the defendant did not appear before default was entered.

There is no pending motion to vacate default.

Plaintiff has dismissed DOES 1-25, the only parties against whom a default judgment is not sought.

The JC Form CIV-100 was used to request court judgment, item 2 is completed, and the declaration of nonmilitary status requirement is filled out.

A memorandum of costs is verified on the CIV-100 form, and the costs requested are allowable under CCP §1033.5(a).

Plaintiff submitted a proposed judgment on a JUD-100 form. The JUD-100 amounts match the CIV-100.

There were two supporting declarations submitted, from Doecke and Simon respectively.

The judgment total exceeds the caption's "Demand Amount: \$2,017,149.36" by about \$44,000 dollars, but the excess is expressly prayed-for further interest, fees, costs.

The complaint alleges entitlement to attorney's fees under the loan documents. Jessica Simon's declaration calculates attorney's fees under LASC Local Rule 3.214 based on the principal amount of \$1,698,032.49: \$2,890 plus \$15,980.32 (1% of the excess over \$100,000), for a total of \$18,870.32. This matches the amount sought on the CIV-100 and JUD-100.

The complaint alleges entitlement to interest. The principal amount is fixed. An interest calculation was provided. Plaintiff used the lower contract rate rather than the 10% statutory rate.

The complaint states valid claims for breach of contract and money lent. It alleges the promissory note, the forbearance of said note, Defendant's failure to pay at maturity, the amount of unpaid principal/interest sought, and Plaintiff's entitlement to attorney's fees and costs.

Deficiencies

The packet includes copies of the Note as exhibits, but the packet does not contain the original note, a lost-note declaration, or a proposed order accepting copies in lieu of originals. "California Rules of Court, rule 3.1806 applies to negotiable instruments... Rule 3.18064 requires the clerk to undertake certain obligations with respect to a specific category of judgments, namely promissory notes and other written obligations to pay money." (HSBC Bank Nevada, N.A. v. Aguilar (2012) 205 Cal.App.4th Supp. 6, 10.) Because this action is based on a promissory note, Plaintiff must lodge the original note for cancellation or submit a declaration explaining the loss or unavailability of the original note.

Plaintiff should also address in a legal brief, whether the promissory note complies with state or local usury laws.

The Court also reserves the possibility that given the principal and damages sought on a default judgment, it may require an in-person prove-up hearing.

DISPOSITION:

The OSC is CONTINUED for Plaintiff to remedy the deficiencies. Plaintiff shall submit its updated default judgment package 10 days before the hearing.

Declarations in response to the Orders to Show Cause are due five court days before the hearings.